SHOPPING CENTER LEASE

(Triple Net)

ASPEN GROVE MARKETPLACE

This Shopping Center Lease ("Lease") is made as of December 10, 2020 (the "Lease Date") between **MERIDIAN RETAIL PROPERTIES, LLC**, a Colorado limited liability company ("Landlord"), and **BLUEBIRD COFFEE & BAKERY, LLC**, a Colorado limited liability company ("Tenant").

ARTICLE 1 - BASIC LEASE PROVISIONS

1.1 Center	Aspen Grove Marketplace, 12500 E. Sample Parkway, Centennial, Colorado 80112 (the "Center"), consisting of Buildings A, B and C.
1.2 Premises	Suite 140, Building B, containing approximately 7,500 rentable square feet ("RSF").
1.3 Center GLA	62,500 RSF, being the total leasable area of all buildings in the Center ("Center GLA").
1.4 Pro Rata Share	12.00% (Premises RSF of 7,500 divided by Center GLA of 62,500), as further provided in Section 4.9.
1.5 Term	Ten (10) years, commencing March 1, 2021 ("Commencement Date") and expiring February 28, 2031.
1.6 Base Rent	Years 1: $24.00 per RSF per year ($180,000.00 annually; $15,000.00 monthly), increasing 3.0% on each anniversary of the Commencement Date.
1.7 Estimated Operating Expense Payments	Initially $4,200.00 per month, subject to adjustment under Section 4.10.
1.8 Security Deposit	$30,000.00.
1.9 Permitted Use	Operation of a coffee shop, cafe and bakery with ancillary retail sales, and for no other purpose.
1.10 Notice Addresses	Landlord: Meridian Retail Properties, LLC, Attn: Property Management, 800 Example Plaza, Suite 400, Denver, CO 80202. Tenant: at the Premises.

ARTICLE 2 - PREMISES AND TERM

2.1 Demise. Landlord leases to Tenant, and Tenant leases from Landlord, the Premises for the Term, together with the non-exclusive right to use the Common Areas of the Center in common with other tenants, subject to the Rules and Regulations.

2.2 Common Areas. "Common Areas" means all parking areas, driveways, sidewalks, landscaped areas, lighting, signage structures, trash enclosures and other areas of the Center designated by Landlord for the general use of tenants and their customers.

2.3 Delivery. Tenant accepts the Premises in its "as-is" condition, subject to Landlord's work described in Exhibit A.

ARTICLE 3 - RENT

3.1 Base Rent. Tenant shall pay Base Rent in equal monthly installments in advance on the first day of each calendar month, without notice, demand, deduction or offset except as expressly provided in this Lease.

3.2 Additional Rent. All sums payable by Tenant under this Lease other than Base Rent, including Operating Expenses under Article 4, are "Additional Rent."

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ARTICLE 4 - OPERATING EXPENSES (CAM, TAXES AND INSURANCE)

4.1 Tenant's Obligation. In addition to Base Rent, Tenant shall pay Tenant's Pro Rata Share of (a) CAM Expenses, (b) Taxes, and (c) Insurance Costs (collectively, "Operating Expenses"), plus the Administrative Fee described in Section 4.5.

4.2 CAM Expenses. "CAM Expenses" means the reasonable and actual costs paid by Landlord to operate, maintain and repair the Common Areas, limited to: landscaping; parking lot sweeping, striping and minor repair; snow and ice removal; Common Area utilities; Common Area lighting maintenance; security patrol; trash removal; janitorial service for Common Areas; general repairs and maintenance of the Common Areas; and wages and benefits of the on-site property manager and on-site maintenance personnel, prorated for time devoted to the Center.

4.3 Exclusions from CAM Expenses. CAM Expenses shall not include: (a) capital expenditures, except as expressly permitted by Section 4.4; (b) depreciation, mortgage principal or interest, ground rent or other costs of financing; (c) leasing commissions, advertising, and legal, accounting or other fees incurred in negotiating, enforcing or litigating any lease, including this Lease and the leases of other tenants; (d) salaries, wages, bonuses or benefits of any personnel above the level of on-site property manager, including regional, executive or asset management personnel; (e) costs reimbursed or reimbursable by insurance, warranties, condemnation awards or other tenants; (f) fines, penalties, late charges and interest; (g) costs of correcting defects in original construction; (h) costs of operating any property other than the Center, unless fairly allocated on a documented basis; (i) Landlord's general corporate overhead; and (j) any cost or expense billed more than once, whether in the same or in different calendar years.

4.4 Capital Expenditures. Capital expenditures may be included in CAM Expenses only if (i) the improvement is reasonably intended to reduce Operating Expenses, or (ii) it is required by laws first enacted after the Commencement Date. Any such cost shall be amortized on a straight-line basis over its useful life (not to exceed ten (10) years for lighting and electrical improvements and twenty (20) years for all other improvements), without interest, and only the amortized portion attributable to the applicable calendar year may be included in Operating Expenses for that year. Replacement of the roof, roof membrane, structural elements or foundations, and replacement (as opposed to repair) of paving, are Landlord's sole cost and shall not be included in Operating Expenses in any amount.

4.5 Administrative Fee. Landlord may charge an administrative fee equal to twelve percent (12%) of CAM Expenses actually billed to Tenant for the calendar year, excluding from the fee base all Taxes, all Insurance Costs, Common Area utilities, amortized capital costs under Section 4.4, and the Administrative Fee itself (the "Administrative Fee"). The Administrative Fee is in lieu of, and not in addition to, any other management, supervisory or overhead charge.

4.6 Limitation on Controllable CAM Expenses. Beginning with calendar year 2022, Controllable CAM Expenses billed for any calendar year shall not exceed one hundred six percent (106%) of Controllable CAM Expenses billed for the immediately preceding calendar year (non-cumulative and non-compounding). "Controllable CAM Expenses" means all CAM Expenses other than Taxes, Insurance Costs, snow and ice removal, Common Area utilities, and amortized capital costs permitted by Section 4.4. The limitation applies to the total Center-wide amount before application of Tenant's Pro Rata Share.

4.7 Taxes. "Taxes" means real property taxes and installments of assessments levied against the Center and payable during the calendar year. Taxes exclude (a) income, franchise, gift, estate and inheritance taxes; (b) penalties and interest; and (c) any increase in Taxes, and any special or supplemental assessment, attributable to a sale, transfer, refinancing or other change in ownership or financing of the Center.

4.8 Insurance Costs. "Insurance Costs" means premiums for commercial property (all-risk) insurance and commercial general liability insurance covering the Center, in amounts customary for comparable shopping centers in the Denver metropolitan area. Insurance Costs exclude premiums for (a) umbrella or excess liability

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coverage exceeding $5,000,000 per occurrence; (b) policies carried at the corporate or portfolio level of Landlord or its affiliates, including directors and officers, errors and omissions, and crime coverage; and (c) deductibles or self-insured retentions in excess of $10,000 per occurrence.

4.9 Tenant's Pro Rata Share. Tenant's Pro Rata Share is a fraction, the numerator of which is the RSF of the Premises and the denominator of which is the Center GLA, whether or not any space in the Center is occupied or leased. Tenant's Pro Rata Share is 12.00% as of the Lease Date and shall not be increased by reason of vacancy or non-payment by other tenants. It shall be adjusted only upon a physical expansion or reduction of the Center GLA, and then only upon written notice from Landlord stating the new Center GLA.

4.10 Estimated Payments. Tenant shall pay, together with each monthly installment of Base Rent, one-twelfth of Landlord's reasonable estimate of Tenant's annual Operating Expenses. Landlord may revise the estimate not more than once per calendar year upon thirty (30) days' written notice.

4.11 Annual Reconciliation. Within one hundred twenty (120) days after the end of each calendar year, Landlord shall deliver to Tenant a statement (the "Reconciliation Statement") showing in reasonable detail, by line item, the Operating Expenses for the year, the calculation of Tenant's Pro Rata Share, and the estimated payments received from Tenant. Any shortfall shall be due thirty (30) days after Tenant's receipt of the Reconciliation Statement; any overpayment shall be credited against the next amounts due or, if the Term has ended, refunded within thirty (30) days. Landlord's late delivery of a Reconciliation Statement does not waive Landlord's right to a shortfall, but no interest or late charge shall accrue on any shortfall before the thirtieth (30th) day after Tenant's receipt of the Reconciliation Statement.

4.12 Tenant's Audit Rights. Within ninety (90) days after receipt of a Reconciliation Statement (the "Review Period"), Tenant may give written notice objecting to the statement and requesting to inspect Landlord's books and records, including invoices, allocation schedules and occupancy records, supporting the statement. Landlord shall make the records available within thirty (30) days after the request. If Tenant does not object within the Review Period, the Reconciliation Statement shall be binding on Tenant as to that year. Landlord shall refund any overcharge within thirty (30) days after it is determined, and if the overcharge exceeds three percent (3%) of the amount properly chargeable, Landlord shall also reimburse Tenant's reasonable audit costs.

ARTICLE 5 - USE; COMPLIANCE

5.1 Use. Tenant shall use the Premises only for the Permitted Use and shall comply with all applicable laws, health codes and the Rules and Regulations.

5.2 Hours; Trade Name. Tenant shall open for business no later than ninety (90) days after the Commencement Date and shall operate under the trade name "Bluebird Coffee & Bakery."

ARTICLE 6 - MAINTENANCE AND REPAIRS

6.1 Landlord. Landlord shall maintain, repair and replace, at its cost except as provided in Article 4, the roof, structural elements, foundation and exterior walls of Building B and the Common Areas.

6.2 Tenant. Tenant shall maintain the interior of the Premises, including the heating, ventilation and air conditioning equipment serving the Premises, plumbing fixtures, storefront glass and interior finishes, in good order and repair.

ARTICLE 7 - INSURANCE; INDEMNITY

7.1 Tenant's Insurance. Tenant shall carry commercial general liability insurance of not less than $1,000,000 per occurrence and $2,000,000 aggregate, and property insurance on its improvements and personal property, naming Landlord as an additional insured.

7.2 Indemnity. Each party shall indemnify the other against claims arising from its negligence or willful misconduct. Each waives subrogation to the extent of insurance proceeds.

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ARTICLE 8 - ALTERATIONS; ASSIGNMENT

8.1 Alterations. Tenant shall not make structural alterations without Landlord's prior written consent, not to be unreasonably withheld.

8.2 Assignment. Tenant shall not assign this Lease or sublet the Premises without Landlord's prior written consent, not to be unreasonably withheld, conditioned or delayed.

ARTICLE 9 - DEFAULT; REMEDIES

9.1 Default. Tenant is in default if it fails to pay Rent within five (5) days after written notice, or fails to perform any other obligation within thirty (30) days after written notice.

9.2 Remedies. Upon default Landlord may terminate this Lease or Tenant's right to possession and pursue all remedies available at law, subject to Landlord's duty to mitigate damages as required by Colorado law.

ARTICLE 10 - GENERAL

10.1 Governing Law. This Lease is governed by the laws of the State of Colorado.

10.2 Entire Agreement. This Lease, with its Exhibits, is the entire agreement of the parties and may be amended only by a writing signed by both parties.

10.3 Notices. Notices shall be in writing and delivered by hand, nationally recognized overnight courier or certified mail to the addresses in Section 1.10.

LANDLORD:
MERIDIAN RETAIL PROPERTIES, LLC

By: */s/ Dana R. Whitfield*
Name: Dana R. Whitfield
Title: Manager
Date: December 10, 2020

TENANT:
BLUEBIRD COFFEE & BAKERY, LLC

By: */s/ Marcus T. Alvarez*
Name: Marcus T. Alvarez
Title: Managing Member
Date: December 10, 2020

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EXHIBIT A

Center Description and Landlord's Work

A-1. Center Building Areas. The Center consists of three buildings with the following leasable areas, which together comprise the Center GLA of 62,500 RSF:

Building	Suites	Leasable Area (RSF)
Building A	100 - 130	28,500
Building B	140 - 180	22,900
Building C	190 - 210	11,100
Total Center GLA		**62,500**

A-2. Landlord's Work. Landlord shall deliver the Premises with a code-compliant restroom, a grease interceptor stub-out, a demised storefront with entry door, and electrical service of 400 amps.

A-3. Site Plan. The Center site plan is on file with Landlord and is incorporated by reference. Parking is at a ratio of approximately 5.0 spaces per 1,000 RSF.

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FIRST AMENDMENT TO SHOPPING CENTER LEASE

This First Amendment ("Amendment") is made as of October 15, 2023 and is effective as of **January 1, 2024** (the "Amendment Effective Date"), between **MERIDIAN RETAIL PROPERTIES, LLC** ("Landlord") and **BLUEBIRD COFFEE & BAKERY, LLC** ("Tenant"), and amends the Shopping Center Lease dated December 10, 2020 (the "Lease") for Suite 140 at Aspen Grove Marketplace.

1. Consideration. In consideration of Tenant's agreement to extend its operating hours to include Sunday service and to relocate its pylon sign panel to the upper position, and other good and valuable consideration, the parties agree as follows.

2. Administrative Fee. Section 4.5 of the Lease is amended by deleting "twelve percent (12%)" and substituting "ten percent (10%)" for all calendar years beginning with calendar year 2024. All exclusions from the fee base in Section 4.5 remain in effect.

3. Limitation on Controllable CAM Expenses. Section 4.6 of the Lease is amended by deleting "one hundred six percent (106%)" and substituting "one hundred five percent (105%)" for all calendar years beginning with calendar year 2024. The limitation remains non-cumulative and non-compounding.

4. Pro Rata Share. Landlord and Tenant confirm that the Center GLA is 62,500 RSF, that there has been no expansion or reduction of the Center GLA since the Lease Date, and that Tenant's Pro Rata Share remains 12.00%.

5. Ratification. Except as expressly amended hereby, all terms of the Lease remain unmodified and in full force and effect. In the event of a conflict between this Amendment and the Lease, this Amendment controls.

LANDLORD:
MERIDIAN RETAIL PROPERTIES, LLC

By: */s/ Dana R. Whitfield*
Name: Dana R. Whitfield
Title: Manager
Date: October 15, 2023

TENANT:
BLUEBIRD COFFEE & BAKERY, LLC

By: */s/ Marcus T. Alvarez*
Name: Marcus T. Alvarez
Title: Managing Member
Date: October 15, 2023

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